DPDP Applicable Acts

Given the scenario where Paytm is allegedly selling your data to another company and your personal identification information is available on the public domain, the applicable sections under the Digital Personal Data Protection (DPDP) Act, 2023, would be as follows:

1. **Applicable Sections (DPDP, 2023)**:

• **Section 8: Rights of the Data Principal**: This section pertains to the rights of the individual whose data is being processed. It includes the right to access, correct, and erase personal data, among others.

• **Section 11: Obligations of Data Fiduciaries**: This section details the obligations of entities that process personal data (Data Fiduciaries), including the duty to ensure the accuracy of data, to provide mechanisms for grievance redressal, and to implement security safeguards to prevent unauthorized access or disclosure of personal data.

• **Section 12: Data Protection Impact Assessment**: This section mandates Data Fiduciaries to conduct a data protection impact assessment in certain circumstances, especially when processing sensitive personal data or undertaking large-scale processing of personal data that could potentially harm individuals.

• **Section 16: Breach of Data Protection**: This section deals with the consequences of a breach of data protection obligations, including the duty to notify the Data Protection Board in case of a breach that significantly affects the rights and interests of individuals.

2. **Interpretation and Legal Analysis**:

The DPDP Act, 2023, aims to regulate the processing of digital personal data in India. It imposes obligations on Data Fiduciaries, such as Paytm in this case, to handle personal data with due diligence and transparency. The Act defines personal data as data about an individual who is identifiable by or in relation to such data.

If Paytm is selling your personal data to another company without your consent or in violation of the purposes for which it was collected, it could be a breach of Sections 11 and 8 of the DPDP Act. Specifically:

• **Consent and Purpose Limitation (Section 11)**: Paytm must have obtained your explicit consent for the processing of your personal data and must process it only for the purposes for which it was collected. Selling your data to another company without fulfilling these conditions could violate this section.

• **Right to Access and Correction (Section 8)**: As a Data Principal, you have the right to access your personal data held by Paytm and to request corrections if the data is inaccurate or outdated.

The availability of your personal identification information on the public domain could also imply a breach of security safeguards by Paytm, which is a requirement under Section 11.

3. **Pros**:

• **Rights of Data Principals**: The DPDP Act empowers individuals with rights such as access to their personal data, correction of inaccuracies, and possibly erasure of their data.

• **Protections and Safeguards**: It mandates Data Fiduciaries to implement security safeguards to protect personal data from breaches and unauthorized disclosures.

4. **Cons**:

• **Liabilities and Penalties**: Data Fiduciaries like Paytm face liabilities and potential penalties for non-compliance with the DPDP Act. This includes monetary penalties for breaches of data protection obligations.

• **Compliance Burdens**: The Act imposes several compliance requirements, including data protection impact assessments and possibly the appointment of a Data Protection Officer, which could increase operational costs and burdens for Data Fiduciaries.

5. **Procedural Notes**:

• **Complaints and Grievance Redressal**: Individuals can file complaints with the Data Fiduciary or approach the grievance redressal mechanism established by the Data Fiduciary. If unresolved, complaints can be escalated to the Data Protection Board.

• **Penalties and Compliance Audits**: The Data Protection Board can impose penalties on Data Fiduciaries for non-compliance. Regular audits and assessments ensure that Data Fiduciaries adhere to the compliance requirements under the DPDP Act.

In conclusion, if Paytm is selling your data to another company and your personal identification information is publicly available, it could constitute a breach of several provisions under the DPDP Act, 2023, particularly those related to consent, purpose limitation, security safeguards, and the rights of the Data Principal.